

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 20, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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18CV-02285	OP Development, Inc., et al. vs Scotty Pereira
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Motion for Award of Attorneys' Fees and Costs

Plaintiff's motion for attorney's fees and costs is GRANTED IN PART.

Plaintiff seeks to set the lodestar at \$90,576.50, which is inclusive of \$1,907.50 for the preparation of this motion.

In addition, Plaintiff seeks costs in the amount of \$5,150.21.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.)

The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

At the onset, the court notes the billing invoices attached to the Declaration of Hebesha are completely redacted. The issue is not the redaction itself, it is the absence of alternative documentation supporting the requested attorney's fees. The only information available to the court regarding the hours expended is the "Timekeeper Recap" at the end of the redacted billing (Hebesha Decl., ¶ 6, Exhibit D). This shows the timekeeper, the hours expended, the rate, and the total amount. However, there is no documentation as to other timekeepers role in this litigation.

The hourly rate of counsel Hebesha is documented and is supported by evidence of counsel's experience, reputation, and results of the litigation. However, the court does not know the roles of the remaining timekeepers. As such, the court finds it reasonable to reduce the hourly rates of the remaining timekeepers to a maximum of \$200. The rates below \$200 are not disturbed.

In addition, the lack of documentation has caused the court to review the entire record to determine if the hours expended were reasonable. Here, the court finds it reasonable to reduce the hours billed at the \$200 rate by 15 hours.

This sets the initial attorney's fees at \$72,004.

As to the instant motion itself, counsel has stated that they spent 3.5 hours, at an hourly rage of \$545.00 in preparing the motion. However, the court finds the hours claimed to be excessive. Based on the motion, the supporting declaration, and attached exhibits, the court finds it reasonable to reduce the hours by 1, leaving a total of 2.5 hours for preparation of the motion.

Based on the above the court sets the lodestar at \$73,366.50.

Plaintiff also seeks costs in the amount of \$5,150.21. As a general rule, "[a] prevailing party who claims costs must serve and file a memorandum of costs. . . [which is] verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of costs are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).)

Here, although Plaintiff deviates from the established procedure of recovering costs by including them in the motion for attorney's fees, they are not objected to or otherwise opposed. Absent an opposition, the court in its discretion grants the requested costs.

Accordingly, costs are awarded in the amount of \$5,150.21.

Plaintiff is awarded total attorney fees and costs in the amount of \$78,516.71.

Attorney fees and costs are to be paid within thirty (30) days of this court's order.

The court will sign the order lodged with the court on June 15, 2026, modified to reflect the stated attorney's fees in the amount of \$78,516.71.